

House File 918

H-1154

1 Amend House File 918 as follows:

2 1. Page 1, by striking lines 13 through 20.

3 2. Page 1, by striking lines 23 through 30.

4 3. Page 2, by striking lines 2 through 18.

5 4. Page 2, line 19, by striking <5B.> and inserting <5A.>

6 5. By striking page 2, line 32, through page 3, line 3, and
7 inserting:

8 <NEW SUBSECTION. 5B. A person convicted of a violation
9 of subsection 1 is guilty of a simple misdemeanor punishable
10 as a scheduled violation under section 805.8A, subsection 14,
11 paragraph "f".>

12 6. By striking page 3, line 25, through page 4, line 3, and
13 inserting:

14 <f. Proof of financial responsibility. If, in connection
15 with a motor vehicle accident, a person is charged and found
16 guilty of a violation of [section 321.20B, subsection 1](#), the
17 scheduled fine is six hundred forty-five dollars; otherwise,
18 the scheduled fine for a violation of [section 321.20B,](#)
19 [subsection 1](#), is three hundred twenty-five dollars.

20 (1) The scheduled fine for a violation of [section 321.20B,](#)
21 subsection 1, is as follows:

22 (a) If the violation occurred in connection
23 with a motor vehicle accident\$645.

24 (b) If the violation did not occur in connection
25 with a motor vehicle accident\$325.

26 (c) For a second violation within five years, the scheduled
27 fine under subparagraph division (a) or (b), as applicable,
28 shall be doubled.

29 (d) For a third or subsequent violation within five years,
30 the scheduled fine under subparagraph division (a) or (b), as
31 applicable, shall be tripled.

32 (2) Notwithstanding [section 805.12](#), fines collected
33 pursuant to this paragraph shall be submitted to the state
34 court administrator and distributed fifty percent to the victim
35 compensation fund established in [section 915.94](#), twenty-five

1 percent to the county in which such fine is imposed, and
2 twenty-five percent to the general fund of the state.>
3 7. By renumbering as necessary.

GJERDE of Linn